

HOUSE No. 3330**The Commonwealth of Massachusetts**

PRESENTED BY:

Kimberly N. Ferguson*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to municipal light plants.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Kimberly N. Ferguson</i>	<i>1st Worcester</i>	<i>1/10/2025</i>
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>1/16/2025</i>
<i>Kelly W. Pease</i>	<i>4th Hampden</i>	<i>1/14/2025</i>
<i>Patricia A. Duffy</i>	<i>5th Hampden</i>	<i>2/18/2025</i>
<i>Peter J. Durant</i>	<i>Worcester and Hampshire</i>	<i>2/19/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>7/9/2025</i>
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>1/21/2025</i>
<i>Joan Meschino</i>	<i>3rd Plymouth</i>	<i>2/19/2025</i>
<i>Adrienne Pusateri Ramos</i>	<i>14th Essex</i>	<i>3/6/2025</i>
<i>Adam J. Scanlon</i>	<i>14th Bristol</i>	<i>2/27/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>4/2/2025</i>
<i>Jonathan D. Zlotnik</i>	<i>2nd Worcester</i>	<i>3/14/2025</i>

HOUSE No. 3330

By Representative Ferguson of Holden, a petition (accompanied by bill, House, No. 3330) of Kimberly N. Ferguson and others relative to municipal light plants. State Administration and Regulatory Oversight.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to municipal light plants.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 4A of Chapter 40 of the General Laws as appearing in the 2022
2 Official Edition, is hereby amended by deleting in line 8 after the word “selectmen” the words “,
3 and ”

4 SECTION 2. Said section of said chapter is hereby further amended by adding in line 9
5 after the word “committee” the following words: , in a municipal light plant by the board or
6 commission;

7 SECTION 3. Said section of said chapter is further amended by deleting in line 28 the
8 word “or”

9 SECTION 4. Said section of said chapter is further amended by deleting in line 29 “.”
10 and by adding the following words: , or a municipal light plant established under chapter 164 or
11 by special law.

Section 4. Section 47B of Chapter 164 of the General Laws as appearing in the 2022 Official Edition is hereby amended by adding the following subsection:-

(b) Any municipality acting by and through its municipal light board may provide services and assistance to any municipal or state utility, tribal utility as defined in 25 CFR § 169.2, or any other publicly-owned or operated utility, whether located inside or outside of the Commonwealth, and governmental units as defined in section 4A of chapter 40, to construct, install, alter, operate, maintain or repair utility poles and conduit, wires, cables, and equipment, and streetlights and traffic signals to the same extent such municipality acting by and through its municipal light board may provide such services within its service territory. Any such municipality acting by and through its municipal light board may sell, rent, or lease merchandise, equipment, fixtures, utensils and chattels of any description related to the provision of such services. Any employee providing such services entered into between the municipality acting by and through its municipal light board and such other public entity shall be subject to the provisions of chapter thirty-two, sections one to twenty-eight, inclusive, and shall have the same rights and privileges thereunder, as if performing the same duties within the scope of his employment including voluntary assignments.